

		California Evidence Code Section 647 establishes a rebuttable presumption that a proof of service signed by a registered process server is true. It shifts the burden of proving lack of service to the defendant, rather than requiring the plaintiff to prove proper service. On April 17, 2026, the Court authorized service through posting and mailing. The Proof of Service from the posting and mailing shows that service was completed by a layperson, Lynn Paris, not a registered process server. There is no rebuttable presumption as to a lay person. Defendant alleges to have doorbell camera evidence showing that attempts at service were not made on the dates/times as indicated in the proof of service. If Defendant has video evidence to rebut the presumption as to the non-service declaration, the Court will consider it. Additionally, as there is no presumption of proof of service (ROA 15), the Plaintiff must produce the person who provided service at the hearing. Additionally, as indicated by the Clerk's Rejection Notice (ROA 16), Plaintiff's Request for Default Judgment was premature when filed on 5/12/2026. Plaintiff and Defendant must provide evidence of service or lack of service at the hearing on 5/20/2026 at 8:30 AM. Defendant is to have a device in which to play a door camera video at the Court hearing.
11	30-2026-01554359-CL-UD-CJC Korth Family Limited Partnership vs. Zarate	The Court has read and considered the Plaintiff's Motions to Deem Request for Admissions, Set One, Admitted (ROA 28). IT IS ORDERED that the Plaintiff's Motion to Deem Admitted the Facts Set Forth In Plaintiff's First Set of Request for Admissions be and hereby is granted, and that the truth of all specified matters, and the genuineness of all specified documents, in the First Set of Requests for Admissions, propounded by Plaintiff and served on Defendants, be deemed admitted. The Court orders the Defendants, Karen Zarate and Jose Zarate, forthwith to pay a sanction in the amount of \$997.50 to the Plaintiff's counsel. This sum shall be made payable to "Kimball, Tirey, & St. John, LLP" within 5 business days, and shall be delivered to 2040 Main Street, Suite 500, Irvine, CA 92614. The Plaintiff is ordered to provide notice of this Court's order.
12	30-2026-01556541-CL-UD-CJC Western National Securities vs. Noble	The Court has read and considered the Plaintiff's Motions to Deem Request for Admissions, Set One, Admitted (ROA 41). IT IS ORDERED that the Plaintiff's Motion to Deem Admitted the Facts Set Forth In Plaintiff's First Set of Request for Admissions be and hereby is granted, and that the truth of all specified matters, and the genuineness of all specified documents, in the First Set of Requests for Admissions, propounded by Plaintiff and served on Defendant, be deemed admitted. The Court orders the Defendant, Brezanna E. Noble, forthwith to pay a sanction in the amount of \$997.50 to the Plaintiff's counsel. This sum shall be

		made payable to "Kimball, Tirey, & St. John, LLP" within 5 business days, and shall be delivered to 2040 Main Street, Suite 500, Irvine, CA 92614. The Plaintiff is ordered to provide notice of this Court's order.
13	30-2026-01553263-CL-UD-CJC 9 MacArthur Place Property, LLC vs. Poursarvitehrani	The Court has read and considered the Plaintiff's Motion for Summary Judgment and supporting declarations (ROA 23). The Plaintiff provided documentation that the Defendant, Amin Poursarvitehrani, entered into a Lease Agreement on 9/12/2025 for the premises located at 9 MacArthur Place #2202, Santa Ana, CA 92707 at a monthly rental rate of \$6,759. Paragraph 34 of the Lease Agreement entitles the prevailing party to reasonable attorneys' fees not to exceed a total of \$50,000. Defendant was served with a Notice to Pay Rent or Quit, posted on 1/12/2026, for past-due rent of \$13,518. On May 1, 2026, the Court granted the Plaintiff's Motion to Deem Admitted the Facts Set Forth In Plaintiff's First Set of Request for Admissions and that the truth of all specified matters, and the genuineness of all specified documents, in the First Set of Requests for Admissions, propounded by Plaintiff and served on Defendant, be deemed admitted. After reviewing all of the evidence presented, the Court finds that there is no defense to the action and the Defendant has presented no triable issue of material facts, and judgment for the Plaintiff is warranted as a matter of law. The Court GRANTS the motion for Summary Judgment. The Court awards possession of the property located at 9 MacArthur Place #2202, Santa Ana, CA 92707, County of Orange, to the Plaintiff. A writ of possession shall issue forthwith. The judgment applies to all known occupants, subtenants, if any, or named claimants. The lease is forfeited. The Court awards a monetary judgment of \$13,518 for past due rent as stated on the Notice to Pay Rent or Quit, \$24,557.70 in holdover damages - fair rental value per day as \$225.30 x 109 days, 2/1/2026 to 5/20/2026, court costs of \$1,231.20, and attorneys' fees of \$2,941 for a total monetary judgment of \$42,247.90. The Plaintiff is ordered to pay the fee at the clerk's office for raising the jurisdiction limit on the case based on the award for damages. The Plaintiff is ordered to submit a UD-110 form consistent with the Court's order today to the Court Clerk. The Plaintiff is ordered to serve notice of entry of judgment on the defendant.
14	30-2026-01564345-CL-UD-CJC Esperanza Apts LLC vs. Redfern	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 23), Plaintiff's Opposition (ROA 26) and the Complaint (ROA 2). The Court takes Judicial Notice of the 5/6/2026 Minute Order (ROA 21). The Court OVERRULES the Demurrer.